

SENATE BILL 2359

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 24,
Chapter 7 and Title 39, relative to victim testimony.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 24-7-120, is amended by designating subsection (a) as subdivision (a)(1) and adding the following new subdivisions:

(2) The child does not need to testify or be present in the courtroom for the trial judge to make a determination under subdivision (a)(1).

(3) There is a rebuttable presumption that a child under thirteen (13) years of age would be traumatized by the presence of the defendant and that the emotional distress suffered by the child would be more than de minimus such that the child could not reasonably communicate.

(4) Before ordering the testimony of a child to be taken by two-way CCTV, the trial judge must make a finding that such an order does not unduly prejudice the defendant.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.